STANFORD KOMBE
and
LANCELOT MANHANDO
versus
THE STATE

HIGHCOURT OF ZIMBABWE
TAKUVA AND CHIKOWERO JJ
HARARE; 2 March and 18 May 2026

Criminal Appeal

B Zvobgo, for the appellant
R Chikosha, for the respondent

CHIKOWERO J:

[1] This is an appeal from the judgment of the Magistrates Court sitting at Mutoko convicting the appellants of one count of robbery as defined in s 126(a) and (b) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the Criminal Law Code).

[2] Following a full trial the appellant and one Milton Mukombero were convicted of using a pistol to rob Wynos Masendeke of his Techno Pop 5 Cellphone.

[3] Each was sentenced to 8 years imprisonment of which portions were suspended on the conditions of good behaviour and restitution to leave an effective custodial term of 5 years and 355 days.

[4] Mukombero is not before us. The appellants have appealed against the conviction only.

[5] The appeal is opposed.

[6] The lower court made a finding of fact that on 9 May 2024 at around 0300hrs and at Kawere Business Centre in Mutoko the appellants and Mukombero approached the complainant, who was on guard duties, produced a pistol, forced him to the ground and stole his cellphone described at para 2 of this judgment.

[7] That cellphone was valued at US$80. It was not recovered. Also unrecovered was the pistol used in the commission of the offence.

[8] This appeal turns on whether the lower court erred in fact in finding that it was the appellants who committed the offence. That the offence was committed was not in dispute at the trial. The sole issue at the trial was whether the appellants were correctly identified as two of the three robbers who robbed the complainant of his cellphone.

[9] Since what is being attacked on appeal is a factual finding made by the lower court we can only interfere if we are satisfied that, having regard to the evidence placed before that court, the finding complained of is so outrageous in its defiance of logic or of accepted moral standards that no sensible person who had applied his mind to the question to be decided could have arrived at such a conclusion. See *PF ZAPU* v *Minister of Justice, Legal and Parliamentary Affairs* (2) 1985(1) ZLR 305(S) at 326E-G and *Hama* v *National Railways of Zimbabwe* 1996(1) ZLR 664(S) at 670B.

[10] In *S* v *Nkomo and Anor* 1989(3) ZLR 117(S) the point was made that good identification does not need corroboration whereas poor identification does.

[11] The lower court found that the present is a case involving good identification of the appellants and Mukombero, as the robbers, by the complainant. That assessment of the evidence cannot be said to be irrational.

[12] The complainant knew the appellants before the day of the commission of the offence. Although he did not know them by name, he knew them facially because they used to come to his workplace at Kawere Business Centre where they would interact with him. The robbery itself took 30 minutes, which is half of an hour. That period was long enough for the complainant to see and recognise the appellants as the perpetrators of the offence. He noted their facial features and recounted the same at the trial. The one appellant had a missing tooth while the other had a gap in his teeth. The complainant, who interacted with the three robbers at close quarters, described the role played by each and detected who among them was the leader of the gang. The robbery scene was well illuminated by solar lights. The robbers, who were in civilian attire, addressed each other as "officer." Though they were now clad in police uniform the

following morning, the complainant straight away recognised them as his attackers and caused their arrest. The appellants were members of the police constabulary. This possibly explains why they addressed each other as "officer" during the commission of the offence. The appellants did not dispute that they were together during the night of 8 May 2024 within the vicinity of Kawere Business Centre in Mutoko. In light of all the foregoing, which the lower court took into account in a well reasoned judgment, we are satisfied that there was no misdirection of fact in the finding that the appellants had participated in robbing the complainant. There was no mistaken identity to talk about. An identification parade was not necessary. The robbers were not strangers to the complainant.

[13] The complainant's testimony placed the appellants at the scene of the crime thus disproving their *alibis*.

[14] The non recovery of the pistol and the cellphone did not detract from the sufficiency of the evidence justifying conviction of the appellants.

[15] The appeal be and dismissed.

CHIKOWERO J:…….

TAKUVA J:…….. I agree

Chadyiwa and Associates, appellants' legal practitioners
The National Prosecuting Authority, respondent's legal practitioners